head of the State hospital or institution, as would be appropriate in the particular case, provided there are no other funds available for payment of the premiums. The manager of the field station or head of a State hospital or other institution may make such assignment only for the purpose of paying premiums on the existing insurance. The guardian may make the assignment for the purpose of paying premiums on the existing insurance, repaying a loan with interest on such insurance, and if authorized to do so by the court, when converting to a permanent plan.

(f) This regulation shall be effective as of September 2, 1947.

(Pub. Law 254, 80th Cong.)

[SEAL] OMAR N. BRADLEY,
General, U. S. Army,
Administrator of Veterans' Affairs.

SEPTEMBER 16, 1947.

[F. R. Doc. 47-10244; Filed, Nov. 19, 1947; 8:51 a. m.]

PART 36—REGULATIONS UNDER SERVICEMEN'S READJUSTMENT ACT OF 1944

OFFSET OF SUBSISTENCE ALLOWANCE OVERPAYMENTS

Sections 36.567 and 36.568 are added to Part 36 to read as follows:

§ 36.567 *Statement of policy.* The payment of readjustment allowances to a veteran against whom there is outstanding an overpayment of subsistence allowances as to which all other means of collection have been exhausted is not in accord with Federal disbursement practice, and is not a proper expenditure of government funds.

§ 36.568 *Responsibility of State agencies.* Readjustment allowances are not payable when the State Employment Security Agency has been notified of an outstanding uncollectible overpayment of subsistence allowances, until the overpayment has been offset against readjustment allowances otherwise payable or the agency has been notified by the Veterans' Administration Regional Office that the outstanding overpayment has been liquidated.

(Chapter VII, 58 Stat. 295; 38 U. S. C. Sup. 693)

[SEAL] OMAR N. BRADLEY,
General, U. S. Army,
Administrator of Veterans' Affairs.

NOVEMBER 20, 1947.

[F. R. Doc. 47-10243; Filed, Nov. 19, 1947; 8:51 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Subtitle A—Office of the Secretary of the Interior

PART 4—DELEGATIONS OF AUTHORITY

FUNCTIONS RELATING TO INDIAN FUNDS AND FISCAL MATTERS

Paragraph (k), reading as follows, is added to § 4.711 (11 F. R. 10297; 12 F. R. 2366):

§ 4.711 *Functions relating to Indian funds and fiscal matters.* * * *

(k) The approval of applications by individuals, cooperative associations, credit associations, and incorporated and unincorporated tribes and bands for loans pursuant to 25 CFR, Part 21; the issuance of commitment orders; the approval of modifications of loan agreements; and the approval of articles of association and bylaws of cooperative and credit associations.

(R. S. 161, 463; 5 U. S. C. 22; 25 U. S. C. 2; act of Aug. 8, 1946, Pub. Law 687, 79th Cong., 2d sess.)

OSCAR L. CHAPMAN,
Acting Secretary of the Interior.

NOVEMBER 10, 1947.

[F. R. Doc. 47-10223; Filed, Nov. 19, 1947; 8:51 a. m.]

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 425]

SOUTH DAKOTA

REVOCATION OF EXECUTIVE ORDER NO. 3308 OF JULY 14, 1920 AND PARTIAL REVOCATION OF PUBLIC LAND ORDER NO. 239 OF JUNE 28, 1944, COVERING WITHDRAWALS IN CONNECTION WITH WIND CAVE NATIONAL PARK

By virtue of the authority vested in the President and contained in section 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (U. S. C. Title 43, sec. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No 3308 of July 14, 1920 temporarily withdrawing certain lands in order to protect the water supply of the Wind Cave National Park, South Dakota, is hereby revoked, and Public Land Order No. 239 of June 28, 1944, withdrawing certain public lands and reserving them in aid of contemplated legislation for the extension of the said Park, is hereby revoked as to the hereinafter-described tract of land withdrawn thereby.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on January 14, 1948. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from January 14, 1948, to April 14, 1948, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. sec. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. secs. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from December 26, 1947, to January 14, 1948, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on January 15, 1948, shall be treated as simultaneously filed.

(c) *Date for non-preference-right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on April 15, 1948, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference-right filings.* Applications by the general public may be presented during the 20-day period from March 26, 1948, to April 14, 1948, inclusive, and all such applications, together with those presented at 10:00 a. m. on April 15, 1948, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office at Pierre, South Dakota, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office at Pierre, South Dakota.

The public lands affected by this order are contained in the following-described areas:

BLACK HILLS MERIDIAN

T. 5 S., R. 6 E.,
Land withdrawn by Public Land Order No. 239:
Sec. 28, SW¼SW¼.
Land withdrawn by Executive Order No. 3308:
Sec. 29, SW¼;
Sec. 32, NW¼.

The area described aggregates 360 acres, including 200 acres of public and 160 acres of non-public lands.

The public lands are rolling to rough in topography with a rocky soil cut by shallow ravines and deep small canyons. The land is unfit for farming and has but a nominal value for seasonal grazing.

C. GIRARD DAVIDSON,
Acting Secretary of the Interior.

NOVEMBER 12, 1947.

[F. R. Doc. 47-10222; Filed, Nov. 19, 1947; 8:51 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[S. O. 778-B]

PART 95—CAR SERVICE

RAILROAD OPERATING REGULATIONS FOR CAR MOVEMENT

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 14th day of November A. D. 1947.

Upon further consideration of Service Order No. 778 (12 F. R. 6811) and Service Order No. 778-B (12 F. R. 7142) and good cause appearing therefor: It is ordered, that:

Service Order No. 778 *Railroad operating regulations for car movement* be, and it is hereby, further suspended until 12:01 a. m., December 20, 1947.

It is further ordered, that this order shall become effective at 12:01 a. m., November 19, 1947; that a copy of this order and direction be served upon each State railroad regulatory body and upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(40 Stat. 101, sec. 402, 41 Stat. 476, sec. 4, 54 Stat. 901; 49 U. S. C. 1 (10)-(17))

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 47-10231; Filed, Nov. 19, 1947; 8:52 a. m.]

[S. O. 787-A]

PART 95—CAR SERVICE

SUSPENSION OF EMBARGO AGAINST M. DUNN & CO., DETROIT, MICH.

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 14th day of November A. D. 1947.

Upon further consideration of Service Order No. 787 (12 F. R. 7361) and good cause appearing therefor: It is ordered, that:

Service Order No. 787 *M. Dunn & Company, Detroit, Mich., embargoed,* be, and it is hereby, suspended until 7:00 a. m., April 30, 1948, unless otherwise modified by order of the Commission.

It is further ordered, that this order shall become effective at 12:01 a. m., November 15, 1947; that a copy of this order and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(40 Stat. 101, sec. 402, 41 Stat. 476, sec. 4, 54 Stat. 901; 49 U. S. C. 1 (10)-(17))

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 47-10230; Filed, Nov. 19, 1947; 8:52 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE INTERIOR

Office of Indian Affairs

[25 CFR, Part 130]

SAN CARLOS INDIAN IRRIGATION PROJECT, ARIZ.

NOTICE OF PROPOSED CHANGE IN OPERATION AND MAINTENANCE CHARGES

NOVEMBER 10, 1947.

Pursuant to section 4 (a) of the Administrative Procedure Act approved June 11, 1946 (Public Law 404, 79th Congress); the Act of Congress approved June 7, 1924 (43 Stat. 476), as supplemented and amended, and in accordance with the public notice issued by the Secretary of the Interior on December 1, 1932, and by virtue of authority delegated by the Secretary of the Interior to the Commissioner of Indian Affairs, September 14, 1946 (11 F. R. 10297) and thence to the District Directors (25 CFR, Part 02.8), notice is hereby given of intention to amend § 130.110 of Title 25, Code of Federal Regulations, by increasing the per acre operation and maintenance charge on the 50,000 acres of tribal lands and trust patent Indian lands of the San Carlos Irrigation Project within the boundaries of the Pima Indian Reservation from $2.50 per acre per annum to $3.50 per acre per annum. The foregoing change in rate of assessment is to become effective for the calendar year 1948 and the calendar year 1949 and to continue in effect thereafter until further order.

Interested persons are hereby given opportunity to participate in preparing the proposed amendments by submitting their views and data or arguments in writing to William H. Zeh, District Director, U. S. Indian Service, 4100 Rhoads Circle, Phoenix, Arizona, within 30 days from the date of the publication of this notice of intention in the daily issue of the FEDERAL REGISTER.

WM. H. ZEH,
District Director.

[F. R. Doc. 47-10221; Filed, Nov. 19, 1947; 8:51 a. m.]

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR, Part 53]

GRADING AND CERTIFICATION OF MEATS, PREPARED MEATS, AND MEAT PRODUCTS

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given that the Secretary of Agriculture, pursuant to the authority vested in him by law, proposes to revise the regulations governing the grading and certification of meats, prepared meats, and meat products (7 CFR, and Supps. 53.1 et seq.) as follows:

DEFINITIONS

Sec.
53.1 Meaning of words.
53.2 Terms defined.

ADMINISTRATION

53.3 Authority.

WHERE SERVICES MAY BE OFFERED

53.4 Designated markets and locations.
53.5 When grading services may be denied or withdrawn.

GRADING SERVICES

53.6 Kind of service.
53.7 Request for establishment of grading service.
53.8 Who may obtain grading service.
53.9 How to obtain grading service.
53.10 Form of application for grading service.
53.11 When application for grading service deemed filed.
53.12 When application for grading service may be rejected.
53.13 When application for grading service may be withdrawn.
53.14 Authority of agent.
53.15 Accessibility of product.
53.16 Basis of service.
53.17 Order of grading.
53.18 Financial interest of grader.
53.19 Certificates, issuance.
53.20 Certificates, form.
53.21 Certificates, disposition of.
53.22 Certificate, advance information concerning.

GRADE IDENTIFICATION

53.23 Evidence of grade.
53.24 Custody of grade-identifying devices.
53.25 Alteration or imitation of grade-identifying devices forbidden.